

Client Morgan Capital
Project 15 Stratford place

Date 16-May-24
Quote no. FF1459
Rev V00

Ref	Description	Indicative Image	Finish	Qty	NET	TOTAL
3th floor						
						
11p boardroom	Skelf bench - Low W4000mm x D1500mm x H735mm		Finish: Top: MFC, TBC Frame: Oak or Black Oak	1	£1,417.14	£1,417.14
11p boardroom	Centra power unit 4 Power - 3.15A. Dual USB charger 65W - A + C.		Finish: White	2	£174.55	£349.09
11p boardroom	Centra power unit 4 Power - 3.15A. Dual USB charger 65W - A + C. 2m Starter lead - BS13A. 1 HDMI 1.4		Finish: White	1	£205.00	£205.00
11p boardroom	Starter Cables for above power 2m Starter lead. BS13A - GST.		Finish: White	1	£15.00	£15.00

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Ref	Description	Indicative Image	Finish	Qty	NET	TOTAL
11p boardroom	Interconnect Leads for above power 2m Interconnect lead. GST - GST.		Finish: White	2	£15.00	£30.00
11p boardroom	Cable sock for static hight desks and tables		Finish: White	1	£25.00	£25.00
11p boardroom	Credenza W1565mm x D550mm x H735mm 3 door unit with handles Plinth base		Finish: MFC TBC	2	£1,340.00	£2,680.00
11p boardroom	Bute meeting chair Seat weight & tilt		Finish: Black	11	£183.00	£2,013.00
4p meeting room	Skef table - circular D1000mm x H735mm		Finish: Top: MFC, TBC Frame: Oak or Black Oak	1	£614.86	£614.86
4p meeting room	power unit 1 Power 3.15A. Triple USB charger 5v DC 3.1A – A + C + C. 1 HDMI.		Finish: White	1	£117.27	£117.27
4p meeting room	Starter Cables for above power 2m Starter lead. BS13A - GST.		Finish: White	1	£15.00	£15.00
4p meeting room	Cable sock for static hight desks and tables		Finish: White	1	£25.00	£25.00

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Ref	Description	Indicative Image	Finish	Qty	NET	TOTAL
4p meeting room	Bute meeting chair Seat weight & tilt		Finish: Black	4	£183.00	£732.00
6p meeting room	Skef table - circular D1400mm x H735mm		Finish: Top: MFC, TBC Frame: Oak or Black Oak	1	£773.14	£773.14
6p meeting room	Blinky power unit 3 Power - 3.15A. 3 Dual USB charger 30W - A + C.		Finish: White	1	£196.43	£196.43
6p meeting room	Starter Cables for above power 2m Starter lead. BS13A - GST.		Finish: White	2	£15.00	£30.00
6p meeting room	Cable sock for static hight desks and tables		Finish: White	1	£25.00	£25.00
6p meeting room	Credenza W1565mm x D550mm x H735mm 3 door unit with handles Plinth base		Finish: MFC TBC	1	£1,340.00	£1,340.00
6p meeting room	Bute meeting chair Seat weight & tilt		Finish: Black	6	£183.00	£1,098.00

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Ref	Description	Indicative Image	Finish	Qty	NET	TOTAL
office	Existing round table D1000mm x H735mm		Finish: As pictured	1		
office	power unit 1 Power 3.15A. Triple USB charger 5v DC 3.1A – A + C + C. 1 HDMI.		Finish: White	1	£117.27	£117.27
office	Starter Cables for above power 2m Starter lead. BS13A - GST.		Finish: White	1	£15.00	£15.00
office	Cable sock for static high desks and tables		Finish: White	1	£25.00	£25.00
office	Existing meeting chairs		Finish: As pictured	2		
office	New Task chair - Aaran task chair Adjustable lumbar support Adjustable arm rest/seat slide		Finish: Black	1	£205.00	£205.00
office	Single Desk W1600mm x D800mm x H735mm		Finish: Top: MFC, TBC Frame: Black	1	£363.86	£363.86

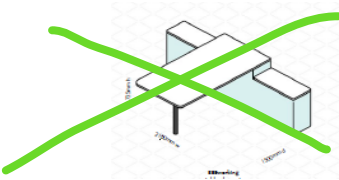
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Ref	Description	Indicative Image	Finish	Qty	NET	TOTAL
office	Above and below desk power Desk top power : 2 Power - 3.15A thermal reset. Dual USB charger 30W - A + C. . Desk clamp. Below Power: 4 Power - 5A. 1m Starter lead - GST & 1m Interconnect lead. GST - GST.		Finish: Black	1	£121.36	£121.36
office	Cable sock for static high desks and tables		Finish: White	1	£25.00	£25.00
office	Move monitor arm Load rating 2-9kg with Vesa plate and desk clamp		Finish: Black (or white)	1	£137.90	£137.90
Entrance	Lola Lounge W860mm x D880mm x H880mm		Finish: Band 3	2	£1,043.00	option
Entrance	Rico Lounge W870mm x D760mm x H765mm		Finish: Boucle - Off-White	2	£1,423.34	£2,846.67
Entrance	New - Round coffee table D450mm x H425mm Pedestal base		Finish: Top: Oak Frame: Black	1	£214.29	£214.29

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Ref	Description	Indicative Image	Finish	Qty	NET	TOTAL
Tea point	Skelf bench - Low W2400mm x D1200mm x H735mm		Finish: Top: MFC, TBC Frame: Oak or Black Oak	1	£1,038.86	£1,038.86
Tea point	Herman Dining Chair Wood W475mm x D460mm x H755mm		Finish: Natural Oak	6	£346.43	£2,078.59
Tea point	Platform side chair W525mm x D535mm x H770mm		Finish: Frame: Black Seat and back: Natural Ash	6	£184.96	option
Tea point	Bee Fluted - 2.5 seater sofa W1500mm x D730mm x H815mm		Finish: Upholstery: band 2 Base: Black	4	£1,966.92	£7,867.69
Tea point	Bee - tabel and side elemtns W2100mm x D1500mm x H735mm		Finish: Tabel top: MFC Uphoslter: band 2	2	£2,987.69	£5,975.38
Tea point	Loch - Booth 4 Seater Dinette W2190mm x D1520mm x H790mm		Finish: Upholstery: TBC Table top: Oak MFC Base: Black	2	£4,595.69	option
Tea point	Herman Dining Chair Wood W475mm x D460mm x H755mm		Finish: Natural Oak	2	£346.43	£692.86

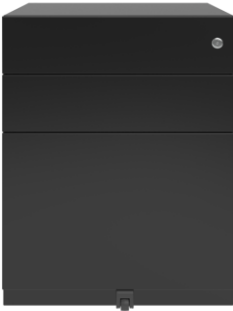
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Ref	Description	Indicative Image	Finish	Qty	NET	TOTAL
Tea point	Herman Lounge W725mm x D645mm x H710mm		Finish: Upholstery: Wool Boucle Base: Natural Oak	2	£1,120.71	£2,241.43
Tea point	Mendoza Armchair W600mm x D700mm x H780mm		Finish: Upholstery: Band 3 Frame: Black	2	£745.38	option
Tea point	New - Round coffee table D450mm x H425mm Pedestal base		Finish: Top: Oak Frame: Black	1	£214.29	£214.29
Tea point	New - Round Dining table D600mm x H425mm Pedestal base		Finish: Top: Oak Frame: Black	2	£316.79	£633.58
phone booth	Existing meeting chairs		Finish: As pictured	1		

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Ref	Description	Indicative Image	Finish	Qty	NET	TOTAL
open plan & Office	Note Pedestals W420mm x D564mm x H565mm 2 x Stationary Drawers, 1 x Filing Drawer		Finish: Black	25	£125.00	£3,125.00
Hot desk in open plan	Hot Desk - Work bench - 6p W3200mm x D1440mm x H735mm		Finish: Top: MFC, TBC Frame: Black	1	£1,317.50	£1,317.50
Hot desk in open plan	Centra power unit 4 Power - 3.15A. Dual USB charger 65W - A + C.		Finish: White	3	£174.55	£523.64
Hot desk in open plan	Starter Cables for above power 2m Starter lead. BS13A - GST.		Finish: White	1	£15.00	£15.00
Hot desk in open plan	Interconnect Leads for above power 2m Interconnect lead. GST - GST.		Finish: White	2	£15.00	£30.00
Hot desk in open plan	Cable sock for static high desks and tables		Finish: White	1	£25.00	£25.00
open plan	Work bench - 4p W2800mm x D1640mm x H735mm Each worktop 1400mm x 800mm		Finish: Top: MFC, TBC Frame: Black / White	4	£830.14	£3,320.57
open plan	Frameless fabric trimmed screen W1400mm x D20mm x H350mm		Finish: Band A	8	£236.00	£1,888.00

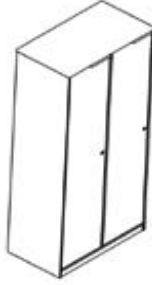
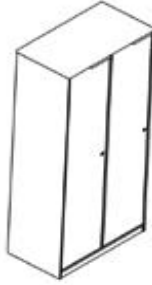
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Ref	Description	Indicative Image	Finish	Qty	NET	TOTAL
open plan	Above and below desk power Desk top power : 2 Power - 3.15A thermal reset. Dual USB charger 30W - A + C . Desk clamp. Below Power: 4 Power - 5A. 1m Starter lead - GST & 1m Interconnect lead. GST - GST.		Finish: Black	24	£121.36	£2,912.73
open plan	Cable sock for static high desks and tables		Finish: White	12	£25.00	£300.00
open plan	Work bench - 8p W5600mm x D1640mm x H735mm Each worktop 1400mm x 800mm		Finish: Top: MFC, TBC Frame: Black / White	1	£1,512.43	£1,512.43
open plan	Frameless fabric trimmed screen W1400mm x D20mm x H350mm		Finish: Band A	4	£236.00	£944.00
open plan - Hot desk in open plan	New Task chair - Aaran task chair Adjustable lumbar support Adjustable arm rest/seat slide		Finish: Black	30	£205.00	£6,150.00
open plan	Move monitor arm Load rating 2-9kg with Vesa plate and desk clamp		Finish: Black (or white)	24	£137.90	£3,309.60
open plan - Hot desk in open plan	End of desk storage with planters W1600mm x D500mm x H890mm 4-door cupboard with 2x adjustable shelves and black square handles. Including planter Liners are not included and plants not included		Finish: MFC - TBC	2	£1,142.08	£2,284.15

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Ref	Description	Indicative Image	Finish	Qty	NET	TOTAL
Entrance	Coat cupboard W1000mm x D600mm x H1800mm		Finish: MFC - TBC	1	£1,307.69	£1,307.69
open plan - Hot desk in open plan	Full height storage W1000mm x D450mm x H1800mm		Finish: MFC - TBC	6	£1,307.69	£7,846.15
Off-site storage of existing product						
	Storage off site for products to be reused. Cost per week, minim charge is 4 weeks		Finish: NA	6	£75.00	option

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Ref	Description	Indicative Image	Finish	Qty	NET	TOTAL
Sub Total Furniture						£73,326.43

Customs Clearance - Agent Fees and Import Duties	£250.00
Supplier Delivery Cost to UK Warehouse	£1,785.71
Delivery & Installation for new products during normal working hours with use of lift including waste removal and recycling.	£5,356.27
Moves and dismantling of existing furniture and storage on site	£1,850.71
Disposal of furniture not being used	£2,175.91

Total Furniture (ex VAT)	£84,745.03
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Terms: 60% on Order, 40% Prior to Delivery - 7 day payment terms
Costs do not include VAT which will be charged at the prevailing rate
Quotation valid for 30 days from above date
Delivery: Leadtime to be confirmed upon receipt of order. Estimated lead times are currently subject to potential freight delays due to port congestion and lack of freight entering the UK. We are working closely with suppliers and clearance agents to keep potential delays to a minimum.

Version Number: V1
Document No: FQT-20

Client approval date:

Client name:

Client signature:

 10 Stephen Mews, London, W1T 1AG

 +44 (0)203 772 6000

 www.cirquefurniture.com

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Ref	Description	Indicative Image	Finish	Qty	NET	TOTAL
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Cirque Furniture Conditions of Purchase

In this Agreement, the following expressions should be read as follows:

"Agreement" shall mean the written agreement made between the Customer and Cirque Furniture International Ltd including these Conditions, each Cost Schedule/ Quotation, and subsequent Purchase Orders and any supplementary documents expressly incorporated herein.

"Cost Schedule / Quotation" means the specification setting out Customer's requirements as detailed in the relevant documentation

"Intellectual Property Rights" means any patent, petty patent, registered design, copyright, design right, know-how, or any similar right exercisable in any part of the world and shall include any application for the registration of any patents or registered designs or similar registrable rights in any part of the world.

"Partner(s)" shall mean Cirque Furniture International Ltd's approved partners as shall assist in the fulfilment of this Agreement from time to time.

Partners include manufacturers, installation crews, or other parties associated with Cirque Furniture International Ltd.

"Products" means all goods supplied by Cirque Furniture International Ltd in accordance with this Agreement

"Services" means all services supplied by Cirque Furniture International Ltd in accordance with this Agreement.

"Cirque Furniture International Ltd" means Cirque Furniture International Ltd International Ltd with company number 11500761.

1 ORDERS

1.1 These Conditions apply to the Agreement to the exclusion of any other terms that the Customer seeks to impose or incorporate, or which are implied by trade, custom, practice or course of dealing.

1.2 The order constitutes an offer by the Customer to purchase the Products and/or Services in accordance with these conditions. The Customer is responsible for ensuring that the terms of the order and any applicable Cost Schedule / Quotation are complete and accurate.

1.3 The order shall only be deemed to be accepted when Cirque Furniture International Ltd issues a written acceptance of the order, at which point the Agreement shall come into existence

1.4 Orders may be placed in writing, or if agreed between the parties, by electronic transmission. The information in the order will include at a minimum:

- purchase order number or signed quotation by an authorized individual;
- product specifications, quantities and agreed prices;
- delivery date agreed between Customer and Cirque Furniture International Ltd;
- delivery address;
- billing address;
- shipping instructions;
- VAT numbers.

1.5 The Agreement constitutes the entire agreement between the parties. The Customer acknowledges that it has not relied on any statement, promise, representation, assurance or warranty made or given by or on behalf of Cirque Furniture International Ltd which is not set out in the Agreement.

1.6 Any samples, drawings, descriptive matter, or advertising produced by Cirque Furniture International Ltd and any descriptions or illustrations contained in Cirque Furniture International Ltd's catalogues or brochures are produced for the sole purpose of giving an approximate idea of the Products described in them. They shall not form part of the Agreement or have any contractual force.

2 INVOICING AND PAYMENT TERMS

2.1 Subject to clause 2.2, the Customer shall pay Cirque Furniture International Ltd as follows:

- 50% deposit payable within seven (7) working days of acceptance of order or delivery whichever period is shorter, and
 - 40% payable on delivery of the furniture payable within 7 days.
- c. 10% on practical completion payable within 7 days.
- 2.2 In respect of small orders from a new client of Cirque Furniture International Ltd, valued at below £2,000, Cirque Furniture International Ltd requires 100% upfront payment.
- 2.3 The billing of small orders may be presented within a single invoice.
- 2.4 In the event that the Customer wishes to change or amend the order or the Cost Schedule / Quotation at any time after the order has been accepted, Cirque Furniture International Ltd reserves the right to increase the price of the Product and/or Services to reflect such changes.
- 2.5 Any delay caused by any instructions of the Customer or failure of the Customer to give Cirque Furniture International Ltd adequate or accurate information or instructions may result in an increase in the price of the Products and/or Services.
- 2.6 All charges specified in this Agreement are exclusive of value added tax.
- 2.7 The payment terms set out above may be varied for a particular order(s) upon the mutual agreement of the parties and any such revised payment terms shall be set forth in the purchase order relating to the order.
- 2.8 The Customer will bear all taxes, foreign exchange costs and levies and charges, statutory or otherwise, including but not limited to VAT, taxes and levies related to the Products and/or Services which may be in force from time to time.
- 2.9 If the Customer is required by any applicable laws to make any deduction or withholding from any payment due to Cirque Furniture International Ltd, then the gross amount payable will be increased so that after any such deduction or withholding, the net amount received by Cirque Furniture International Ltd will not be less than what would have been received had no such deduction or withholding been required. Whenever applicable, such taxes shall be shown on the invoices of Cirque Furniture International Ltd and on the remittance from the Customer. It is the responsibility of the Customer to ensure such deductions are paid to the appropriate administration responsible for their collection.
- 2.10 Standard packaging is included in prices quoted.
- 2.11 No variation of the invoicing and payment terms shall be effective unless it is in writing and signed by a director of Cirque Furniture International Ltd.

3 SERVICES

3.1 Cirque Furniture International Ltd shall provide the Services to the Customer in accordance with the Cost Schedule / Quotation in all material respects.

3.2 Cirque Furniture International Ltd shall use all reasonable endeavours to meet any performance dates for the Services specified in the Cost Schedule / Quotation but any such dates shall be estimates only and time shall not be of the essence for the performance of the Services.

3.3 Cirque Furniture International Ltd shall have the right to make any changes to the Services which are necessary to comply with any applicable law or safety requirement, or which do not materially affect the nature or quality of the Services, and Cirque Furniture International Ltd shall notify the Customer in any such event.

3.4 Cirque Furniture International Ltd warrants to the Customer that the Services will be provided using reasonable care and skill.

4 DELIVERY AND INSTALLATION

4.1 Delivery will be agreed by the parties on receipt of an order by Cirque Furniture International Ltd from Customer.

4.2 The lead time will be as agreed between the parties and in all instances, lead times may be delayed by Cirque Furniture International Ltd in the absence of a signed agreement, properly completed purchase order between the parties, or delay in the receipt of payment for an individual order's first and second invoice. Time shall not be of the essence.

4.3 In the event that the Delivery dates cannot be met, Cirque Furniture International Ltd will inform the Customer accordingly and advise a new and firm delivery date. However, reasonable endeavours will be used to ensure that Products are delivered at the time agreed on the Order.

4.4 Should the Customer wish to reschedule the delivery dates, costs incurred in such rescheduling will be detailed to Customer in writing and must be agreed by the parties prior to rescheduling. Cirque Furniture International Ltd shall mitigate its costs of changes as far as commercially viable, but all costs reasonably incurred will be borne by the Customer as invoiced by Cirque Furniture International Ltd at point of shipment. Cirque Furniture International Ltd undertakes to deliver Product in accordance with the Cost Schedule / Quotation and the terms and conditions of this Agreement.

4.5 Cancellation of Orders: Cirque Furniture International Ltd reserves the right to charge the Customer cancellation fees in the event the Customer cancels the order. Such cancellation fees shall reflect any costs reasonably incurred in starting to fulfil the order, and the charge will be deducted from any refund that is due to the Customer or, if no refund is due, invoiced to the Customer.

4.6 Cirque Furniture International Ltd may charge the Customer for any additional cost or expense incurred as a result of any delay or difficulty in off-loading or transporting the goods to the site or commencing, continuing with or completing the installation for reasons outside our reasonable control and relating to issues not known at the point of quotation. For the purposes of this condition, Cirque Furniture International Ltd shall be entitled to charge in relation to any such delay at our then hourly rate for all personnel concerned during the full period of the delay, with a minimum charge of 8 hours per day for any such personnel per day exceeding 1 day in duration.

4.7 Where the Products are to be installed by Cirque Furniture International Ltd or its agents, the Customer shall ensure that there is convenient parking space for service vehicles and where the Products are not being installed at ground level, suitable lift accommodation to the site level. The site should be in a good condition ready to accept furniture and should allow free and unobstructed access for the delivery of the Products.

5 ACCEPTANCE

5.1 On completion of the delivery and installation of the Products, the Customer (or its representative) shall sign its acceptance of the Products, being free of apparent damage and defects, subject to any separate snagging list agreed by the parties.

5.2 In the event any latent defect arises in respect of the Products after such acceptance, Cirque Furniture International Ltd may, at its discretion, replace or repair the defective Product in accordance with the manufacturers guarantee.

6 TITLE & RISK

6.1 Risk in the Products shall pass to the Customer on completion of delivery.

6.2 The Customer shall carry insurance to cover risk of loss or damage to Products once the Products have been delivered to the Customer.

6.3 The Customer shall have right of ownership to the Products, upon full payment of relevant invoices, and Cirque Furniture International Ltd shall retain title to all Products supplied until this full payment is received.

7 LIMITATION OF LIABILITY

7.1 Nothing in these Conditions shall limit or exclude Cirque Furniture International Ltd's liability for:

- death or personal injury caused by its negligence, or the negligence of its employees, agents or subcontractors (as applicable);
 - fraud or fraudulent misrepresentation;
 - breach of the terms implied by section 12 of the Sale of Goods Act 1979;
 - defective products under the Consumer Protection Act 1987; or
 - any matter in respect of which it would be unlawful for the Supplier to exclude or restrict liability.
- 7.2 Subject to clause 7.1:

- Cirque Furniture International Ltd shall under no circumstances whatever be liable to the Customer, whether in contract, tort (including negligence), breach of statutory duty, or otherwise, for any loss of profit, or any indirect or consequential loss arising under or in connection with the Agreement; and
 - Cirque Furniture International Ltd's total liability to the Customer in respect of all other losses arising under or in connection with the Agreement, whether in contract, tort (including negligence), breach of statutory duty, or otherwise, shall in no circumstances exceed:
 - £2,000,000 in respect of damage to real property; and
 - £1,000,000 in respect of all other losses.
- 7.3 Furniture is not subject to construction retentions.

8 QUALITY ASSURANCE, REGULATORY APPROVALS & SAFETY

8.1 Cirque Furniture International Ltd warrants that on delivery the Products shall:

- conform in all material respects the Cost Schedule / Quotation; and
- be free from material defects in design, material and workmanship.

8.2 Cirque Furniture International Ltd shall ensure that its personnel comply with all security and other office procedures and regulations implemented or otherwise required by Customer.

9 INTELLECTUAL PROPERTY

9.1 Cirque Furniture International Ltd shall fully indemnify Customer against all claims, demands, actions, costs, expenses (including but not limited to full legal costs), losses and damages arising from or incurred by reason of any infringement or alleged infringement (including but not limited to the defence of such alleged infringement) of any intellectual property right of a third party by the use or possession of any Product provided by Cirque Furniture International Ltd.

9.2 Cirque Furniture International Ltd acknowledges that all Intellectual Property Rights in all materials, documentation or other information (including computerised information) provided by Customer to Cirque Furniture International Ltd in the performance of Cirque Furniture International Ltd's obligations under a Agreement are the property of and will at all times remain vested in Customer.

9.3 Plans, Product Design, Standards and Cirque Furniture International Ltd Project Documentation remain the property of Cirque Furniture International Ltd or its manufacturers.

9.4 Except as expressly set out in this Agreement, no assignment of or license under any Intellectual Property Right is granted by the Agreement.

9.5 The provisions of this Clause 8 shall survive termination or expiry of this Agreement indefinitely.

10 CONFIDENTIAL INFORMATION AND DISCLOSURE

10.1 Except as may be necessary for the performance of this Agreement, the parties undertake to keep confidential and not to disclose to any third party without the other's prior written consent, any information whether in writing, on computer disc, electronically transmitted, verbal or in any other medium relating to the Agreement or supplied under the terms of the Agreement including proprietary information regarding new products and development plans, product testing and marketing information, price details, customer and project information, business goals, programs and methods and other company information, all of which shall be deemed confidential information ("the Information") except to the extent that it:

- is now or later comes into the public domain without any breach of obligations hereunder (or under any other agreement or obligation having force in law) by the parties or their employees or any third party to which such information has been disclosed; or
- was already lawfully in the unrestricted possession of the other party at the time of disclosure; or
- is independently received by either party from a third party without notice of restrictions or protection similar to those contained herein; or
- is developed by either party independently of any confidential disclosure.

10.2 The parties shall confine the use of any document or information disclosed to it by the other to that necessary for the performance of its obligations or exercise of its rights under this Agreement.

10.3 Neither party will copy or allow others to copy or discuss the whole or part of the information supplied by the other party pursuant to this Agreement without the other's prior written consent.

10.4 The provisions of this Clause 9 shall survive termination or expiry of this Agreement indefinitely.

11 TERMINATION

11.1 This Agreement may be terminated immediately by either party if the other:

- commits a material breach of the Agreement (being a single event or a series of events which together amount to a material breach) which has not been cured (if capable of being so) within fourteen (14) days of written notice to do so; or
- an order is made or a resolution is passed for the winding up of the other party, or an order is made for the appointment of an administrator to manage the affairs, business and property of the other party, or such an administrator is appointed, or a receiver is appointed of any of the other party's assets or undertaking, or circumstances arise which entitle a court or a creditor to appoint a receiver or manager or which entitle a court to make a winding-up order, or the other party takes or suffers any similar or analogous action in consequence of debt, or an arrangement or composition is made by the other party with its creditors or an application to a court for protection from its creditors is made by the other party; or
- the other party, being an individual, is the subject of a bankruptcy petition or order, or dies, or, by reason of illness or incapacity (mental or physical), is incapable of managing his own affairs, or becomes a patient under any mental health legislation; or
- the other party suspends or ceases, or threatens to suspend or cease, to carry on all or a substantial part of its business.

11.2 Either party may cancel or terminate this Agreement at any time on seven (7) days written notice to the other.

11.3 Upon termination, Customer shall pay all amounts due to Cirque Furniture International Ltd for the Products provided on production up to the time of cancellation or termination. Cirque Furniture International Ltd may use the deposit (set out in clause 2.1 a) to set off any amounts owing.

11.4 Subject to clause 11.3, upon termination Cirque Furniture International Ltd shall promptly refund to Customer any sums ben standing to the credit of Customer and return to Customer all of Customer's property and documentation acquired by Cirque Furniture International Ltd in the performance of its obligations.

11.5 All rights and/or obligations under this Agreement which are expressed to apply after termination of this Agreement shall remain in force.

12 FORCE MAJEURE

Neither party shall be liable for delay or non-performance of its obligations (or part thereof) if the cause of the delay or non performance

is an event which is unforeseeable, beyond the control of the affected party and cannot be remedied by the exercise of reasonable diligence. Such events include without limitation, natural disasters, acts of civil or military authority, governmental orders, war, fire, explosion, labour unrest (except if limited to the affected party) or epidemic. The affected party shall notify the other party as soon as it becomes aware of a force majeure event and the parties shall mutually agree a plan to resolve the situation and restore the normal workings of this agreement. The affected party shall take all necessary measures to mitigate its costs.

13 ASSIGNMENT

13.1 Cirque Furniture International Ltd may at any time assign, transfer, mortgage, charge, subcontract or deal in any other manner with all or any of its rights under the Agreement and may subcontract or delegate in any manner any or all of its obligations under the Agreement to any third party.

13.2 The Customer shall not, without the prior written consent of Cirque Furniture International Ltd, assign, transfer, charge, subcontract, declare a trust over or deal in any other manner with all or any of its rights or obligations under the Agreement.

13.3 Cirque Furniture International Ltd shall remain fully responsible for any work performed and the acts and omissions of its partners.

14 GENERAL PROVISIONS

14.1 Any delay or failure on the part of either party in enforcing any right or remedy under or arising out of this Agreement will not constitute a waiver of such right or remedy.

14.2 Paragraph headings are inserted for convenience only and shall not affect the interpretation or construction of this Agreement.

14.3 No modification of this Agreement will be valid unless in writing and signed by a duly authorised representative of each party.

14.4 If any provision of this Agreement is found to be invalid or unenforceable, its invalidity or unenforceability shall not affect the other provisions of this Agreement which shall remain in full force and effect.

14.5 The Agreement, and any dispute or claim arising out of or in connection with it or its subject matter or formation